IN THE CIRCUIT COURT '1' HELD IN ACCRA ON MONDAY THE 9TH DAY OF JUNE, 2025 BEFORE HER HONOUR CHRISTINA EYIAH-DONKOR CANN (MRS.) CIRCUIT COURT JUDGE

CASE NO: D21/813/2023

THE REPUBLIC

VRS

ROBERT ASHONG @ PAA QUAYE

JUDGMENT

FACTS

The accused person was arraigned before the court on the 7th March, 2024 on an amended charge sheet and charged with two (2) counts of the offence of Unlawful Control of Narcotic Drugs contrary to Section 37(1) of the Narcotics Control Commission Act, 2020 (Act 1019). The Forensic Science Laboratory of the Criminal Investigation Department of Ghana Police Service test report dated 6th January, 2023 stated that all four (4) white plastic containers, with weight of 5,953.56 grams, 5,353.56 grams, 5,753.56 grams and 6,653.56 grams respectively, one brown paper envelope containing a black polythene bag with weight of 1,339.24 grams, one fertilizer sack containing a quantity of plant material with weight of 2,339.40 grams, one brown envelope containing a white polythene bag with a quantity of plant material with weight of 282.58 grams, white plastic gallon containing a quantity of a brown coloured liquid substance with weight of 1,318.22 grams and plain plastic bottle containing a quantity of a brown coloured liquid substance with weight of 926.16 grams tested positive for Delta-9-tetrahydrocannabinol, Cannabinol and Cannabidiol, all active ingredients of Cannnabis.

The case of the prosecution is as follows:

"Complainants in this case are police officers stationed at the Drug Law Enforcement Unit CID Headquarters Accra. Accused person is a Drinking Bartender and resides at Osu-Nyaniba Estate Accra. On 31/08/2022, about 12:45 p.m., the complainant acted upon intelligence gathered and arrested the accused person in his drinking spot popularly called "OTANFO NYE NYAME" at Osu-Nyaniba Estate, Accra and recovered in the spot and in his room four (4) white containers with an inscriptions "BROTHERS CO. LTD" containing quantity of plant material, a black polythene bag, fertilizer sack and a white polythene bag all containing quantities of similar plat material, suspected to be narcotic drug, four (4) liters gallon and one plastic bottle all containing alcoholic beverages suspected to be laced with narcotic drug. During interrogation and in his investigation caution statement given to the Police, the accused person confessed to the crime and mentioned one Charles from Keta in the Volta Region as his source of supply. The accused person failed to assist the Police to apprehend the said Charles. The aforementioned exhibits were forwarded to the Police Forensic Science Laboratory for analytical examination and report. On 06/01/2023 the test report was received, which confirmed the exhibits positive for cannabis. Upon receipt of the test report, the accused person was charged with the offences as disclosed in the charge sheet."

THE CHARGES

The charges preferred against the accused person and on the basis of which he stands trial together with the particulars of the offences in this instant case are as follows:

"COUNT ONE

STATEMENT OF OFFENCE

UNLAWFUL CONTROL OF NARCOTIC DRUG, CONTRARY TO SECTION 37 (1) OF THE NARCOTICS CONTROL COMMISSION ACT 2020, (ACT 1019)

PARTICULARS OF OFFENCE

ROBERT ASHONG ALIAS "TEE QUAYE", AGED 49 YEARS, A DRINKING BARTENDER*: On 31st day of August, 2022 at Nyaniba-Estate Accra, in the Greater Accra*

Region and within the jurisdiction of this court, had in your control Four (4) white containers with an inscriptions "BROTHERS CO. LTD", a black polythene bag, fertilizer sack and a white polythene bag all containing quantity of Cannabis, with net weight of ***A= 5,953.56g, B=5,353.56g, C=5,753.56g, D=6,653.56g, E=1,339.24g, F=2,339.24g,*** *and* ***G=282.58g*** *respectfully for trafficking without lawful authority.*

COUNT TWO

STATEMENT OF OFFENCE

UNLAWFUL CONTROL OF NARCOTIC DRUG, CONTRARY TO SECTION 37 (1) OF THE NARCOTICS CONTROL COMMISSION ACT 2020 (ACT 1019)

PARTICULARS OF OFFENCE

ROBERT ASHONG ALIAS "TEE QUAYE", AGED 49 YEARS, A DRINKING BARTENDER*: On 31st day of August, 2022 at Nyaniba-Estate Accra, in the Greater Accra Region and within the jurisdiction of this court, had in your control Four (4) liters gallon and One plastic bottle containing Cannabis with net weight of H=1,318.22g and I=926.16g respectfully for trafficking without lawful authority."*

THE PLEA

The self-represented accused person pleaded not guilty to the charges after they have been read and explained to him in Ga, the language of his choice. The accused person having pleaded not guilty to the charges puts the facts of the prosecution in issue and thereafter, the prosecution assumed the burden to prove the guilt of the accused person.

THE BURDEN ON THE PROSECUTION AND DEFENCE

In our criminal jurisprudence, it has always been the duty and obligation of the prosecution, from the outset of the trial, to prove and substantiate the charge preferred against the accused person to the satisfaction of the Court unless in a few exceptions. Under the Evidence Act, 1975 (NRCD 323), the burden of proof is divided into two

parts, that is the burden of persuasion or the legal burden and the evidential burden or the burden to produce evidence.

The burden of persuasion is provided for under section 10 (1) of the Evidence Act, 1975 (NRCD 323) as follows:

"10 (1) For the purposes of this Decree, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the court".

The burden of producing evidence is also provided under section 11(1) of the Evidence Act, 1975 (NRCD 323) thus:

"11 (1). For the purposes of this Decree, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling against him in the issue".

Again, in criminal proceedings, what constitutes the facts in issue depends on any relevant presumptions and the allegations involved. Since the prosecution is asserting the above facts constituting the ingredients of the offence preferred against the accused person, it is incumbent on it to establish that belief of the accused person's guilt in the mind of this Court to the requisite degree prescribed by law. In other words, the prosecution has the burden of persuasion to establish the guilt of the accused person.

When the prosecution has adduced the evidence to establish the essential ingredients of the offence preferred against the accused person which will cumulatively prove the guilt of the accused person, the court at the end of the case of the prosecution will have to decide whether the prosecution has discharged the obligation on it to establish the requisite degree of belief in the mind of the court that the accused person in fact and indeed is guilty of the offence preferred against him. Except in few instances, the measuring rod or the standard of proof for determining that the evidence adduced by the prosecution has attained the requisite degree is provided under sections 10 (2) and 22 of the Evidence Act, 1975 (NRCD 323).

Sections 10 (2) and 22 of the Evidence Act, 1975 (NRCD 323) provide as follows:

"10 (2). The burden of persuasion may require a party to raise a reasonable doubt concerning the existence or non-existence of a fact or that he establishes the existence or non-existence of a fact by the preponderance of the probabilities or by proof beyond reasonable doubt.

22. In a criminal action a presumption operates against the accused as to a fact which is essential to guilt only if the existence of the basic facts that give rise to the presumption are found or otherwise established beyond a reasonable doubt, and thereupon, in the case of a rebuttable presumption, the accused need only raise a reasonable doubt as to the existence of the presumed fact".

If this Court decides that the prosecution has failed to prove each essential ingredient of the offence preferred against the accused person beyond reasonable doubt at the end of the prosecution's case, the accused person will have to be acquitted for he will be deemed to have "no case to answer". But if this Court decides that each essential ingredient has been proved beyond reasonable doubt, then the accused person will have to be called upon to put up his defence, because there will be an established presumption of guilt (*a prima facie* case) which he must rebut, if he does not want the presumption to stay, thus rendering him liable for a conviction. To use the language of section 11 (1) of the Evidence Act, 1975 (NRCD 323), the accused person will have on him the burden of introducing sufficient evidence to avoid a ruling against him that he is guilty of the offence charged. In other words, he has the burden of producing evidence.

The apex court in the case of **Asante No (1) v The Republic [2017-2020] I SCGLR 143-144** explained the burden on the prosecution as follows:

"Our law is that when a person is charged with a criminal offence it shall be the duty of the prosecution to prove his guilt beyond reasonable doubt, meaning the prosecution has the burden to lead sufficient admissible evidence such that on an assessment of the totality of the evidence adduced in court, including that led by the accused person, the court would believe beyond a reasonable doubt that the offence has been committed and that it is the accused who

committed it. Apart from specific cases of strict liability offences, the general rule is that throughout a criminal trial the burden of proving the guilt of the accused person remains with the prosecution. Therefore, though the accused person may testify and call witnesses to explain his side of the case where at the close of the case of the prosecution a prima facie case is made against him, he is generally not required by the law to prove anything. He is only to raise a reasonable doubt in the mind of the court as to the commission of the offence and his complicity in it except where he relies on a statutory or special defence. See: ***Sections 11(2) 13(1), 15(1) of the Evidence Act, 1975 (NRCD 323)*** *and* ***COP v Antwi [1961] GLR 408."***

However, proof beyond a reasonable doubt does not mean beyond a shadow of doubt as was stated by Lord Denning in the case of **Miller vs. Minister of Pensions (1974) 2 ALL ER 372 AT 373** thus:

"It need not reach certainty, but it must carry a high degree of probability. Proof beyond reasonable doubt does not mean proof beyond the shadow of doubt. The law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice."

This dictum emphasizes that proof beyond reasonable doubt does not mean proof beyond every shadow of doubt or proof beyond every possibility.

Lord Justice of the King's Bench from 1822-1841, Charles Kendal Bushe also explained reasonable doubt thus:

"…the doubt must not be light or capricious, such as timidity or passion prompts, and weakness or corruption readily adopts. It must be such a doubt as upon a calm view of all the whole evidence a rational understanding will suggest to an honest heart the conscientious hesitation of minds that are not influenced by party; preoccupied by prejudice or subdued by fear."

See also: **Osei v. The Republic [2002] 24 MLRG 203, CA.**

Abodakpi v. The Republic [2008] 2 GMJ33.

Republic v. Uyanwune [2001-2002] SCGLR 854.

Dexter Johnson v. The Republic [2011] 2 SCGLR 601.

Frimpong a.k.a. Iboman v. Republic [2012] 1 SCGLR 297.

Again, it must be emphasized that the proof by the prosecution can be direct or indirect. It is direct when the accused person is caught in the act or has confessed to the commission of the offence. Thus, where the accused person was not seen committing the offence, his guilt can still be proved by inference from surrounding circumstances that indeed he committed the said offence.

See: **Logan vs Lavericke [2007-2008] SCGLR 76 Headnote 4.**

Dexter Johnson vs The Republic [2011] 2 SCGLR 601 AT 605.

State vs Anani Fiadzo (1961) GLR 416 SC.

Kamil vs The Republic (2010) 30 GMJ 1 CA.

Tamakloe vs The Republic (2000) SCGLR 1 SC.

It is very important to note that one fundamental legal principle pertaining to criminal trials in our jurisdiction as contained in paragraph (c) of clause (2) of article 19 of the Constitution is that:

"19 (2) A person charged with a criminal offence shall-

(c) be presumed to be innocent until he is proven or has pleaded guilty."

The Supreme Court also held on the presumption of innocence in the case of **Okeke vs The Republic [2012] 2 SCGLR 1105 at 1122** *per Akuffo JSC* as follows:

"…the citizen too is entitled to protection against the state and our law is that a person accused of a crime is presumed innocent until his guilt is proved beyond reasonable doubt as distinct from fanciful doubt.''

An accused person therefore in a criminal trial or action, is presumed to be innocent until the contrary is proved, and in case of a reasonable doubt, he is entitled to a verdict of not guilty.

Bosso vs The Republic (2009) SCGLR 470.

ANALYSIS OF THE CHARGE OF UNLAWFUL CONTROL OF NARCOTIC DRUGS

Section 37 (1) and (2) of the Narcotic Control Commission Act, 2020 (Act 1019) provide as follows:

> *"(1) A person who, without lawful authority, proof of which lies on that person, has possession or control of a narcotic drug for use or for trafficking commits an offence.*
>
> *(2) A person who commits an offence in subsection (1)-*
>
> *(a) for use is liable on summary conviction to a fine imposed in accordance with the penalty specified in the Second Schedule and an additional term of imprisonment specified in that Schedule if the fine is not paid; or*
>
> *(b) for trafficking is liable on summary conviction to a fine and imprisonment specified in the Second Schedule and an additional term of imprisonment specified in that Schedule if the fine is not paid."*

A person who commits the offence of unlawful possession or control of a narcotic drug for trafficking shall be liable to a fine of not less than ten thousand penalty units and not more than twenty-five thousand penalty units and not less than ten years and not more than twenty-five years imprisonment. An accused who defaults in paying the fine shall be sentenced to a fixed term of three years.

See: **Second Schedule of the Narcotics Control Commission Act, 2020 (Act 1019).**

Under **Section 2 (1) and (2) of the Narcotic Drugs (Control, Enforcement and sanctions) Act, 1990 (PNDCL 236)** the prosecution must as per the decision of the Supreme Court in **Bonsu Alias Benjilo Vrs The Republic [1999-2000] 1 GLR 199-236** must prove that not only was the accused person in physical possession of the drugs but also knew of the contents in the parcel. And in the Supreme Court case of **Amartey Vrs The Republic [1964] GLR 256 at 26**, it was held that mere physical possession without knowledge of the nature and quality of the article possessed is no offence.

For the prosecution to succeed under this Section, the Supreme Court emphasized as per *Her Ladyship Bamford-Addo JSC* in **Bonsu Alias Benjilo** case (supra) held that:

"To prove the charge of illegal possession of drugs it must be shown that the Appellant not only had physical possession, but also knew the contents of the parcel."

See: Republic V Munkaila [1996-97] SCGLR 445

The word "trafficking" in narcotic has a specific meaning. The trafficking of plant means doing or being concerned in any way of the following, whether in this country or elsewhere

(a) trading, supplying or in any other manner dealing with narcotics, precursors or controlled equipment in contravention of this Act;

(b) transporting or storing drugs, narcotic plant, precursor and controlled equipment in contravention of this Act;

(c) entering into or being otherwise concerned in an arrangement by which,

(i) the retention or control by or on behalf of another person of the proceeds of that person from the trafficking in narcotic drug or plant, precursor or controlled equipment is facilitated; or

(ii) the proceeds of narcotics are used to ensure that funds are placed at the disposal of the other person or used for the benefit of the other person to acquire property by way of investment."

See: **section 113 of the Narcotics Control Commission Act, 2020 (Act 1019).**

In order to secure a conviction, the prosecution must prove beyond reasonable doubt the following:

i. That the accused person had custody and control of the drugs.

ii. That the accused person knew of the nature of the drugs.

iii. That the purpose of the possession was either for use or trafficking.

iv. That the accused person had the drugs without lawful authority.

See: Ellis Tamakloe Vrs The Republic (SUIT NO: 13/2/2009, (Judgment Dated 17th February 2010) .

Logan & Another Vrs The Republic [2007-2008] SCGLR.

Bonsu Alias Benjilo V The Republic [2000] SCGLR 112 at 123.

ANALYSIS OF THE EVIDENCE TO PROVE THE ELEMENTS OF THE TWO (2) COUNTS OF THE OFFENCE OF UNLAWFUL CONTROL OF NARCOTIC DRUGS

The prosecution called two (2) witnesses in support of its case. The case for the prosecution was presented mainly by Number 48891 Detective Corporal Solomon K. Boadi stationed at the at the Drug Law Enforcement Unit (DLEU) of the Criminal Investigation Department Headquarters, Accra and Detective Chief Inspector Joseph Boar Yinbil also stationed at the Drug Law Enforcement Unit (DLEU) of the Criminal Investigation Department Headquarters, Accra.

The prosecution also tendered in evidence various exhibits namely:

1. The four (4) white plastic containers with inscription "BROTHER CO LTD" containing plant materials together with a photograph of same as Exhibits 'A', 'A1', 'A2', 'A3' and 'A4' respectively.
2. A fertilizer sack containing plant materials together with a photograph of same as Exhibits 'B' and 'B1' respectively.
3. A black polythene bag containing plant materials together with a photograph of same as Exhibits 'C' and 'C1' respectively.
4. A white polythene bag containing plant materials together with a photograph of same as Exhibits 'D' and 'D1' respectively.
5. A white gallon containing alcoholic beverage laced with plant materials together with a photograph of same as Exhibits 'E' and 'E1' respectively.

6. A white plastic bottle containing alcoholic beverage laced with plant materials together with a photograph of same as Exhibits 'F' and 'F1' respectively.
7. Request for laboratory examination analysis dated 19th September, 2022 as Exhibit 'G'.
8. Forensic science laboratory test report dated 6th January, 2023 as Exhibit 'H'.
9. Caution statement of the accused person dated 31st August, 2022 as Exhibit 'J'.
10. The charge statement of the accused person as Exhibit 'K'.

PW1 testified that on the 31st August 2022, whilst on duty as the available investigator, the accused person was handed over to him for investigations together with some exhibits namely: four (4) white plastic containers with inscription "Brother Co Ltd" containing dried plant materials, fertilizer sack, black polythene bag, white polythene bag all containing plant materials suspected to be narcotic drug, a white gallon and a plastic bottle both containing alcoholic beverage suspected to have been laced with narcotic drugs. According to PW1, the accused person was interrogated by the Unit station Officer, Detective Chief Inspector Christine Druh in his presence and during the interrogation, the accused person admitted ownership of the aforementioned exhibits and stated that one Charles of Keta in the Volta Region as his supplier. However, the accused failed to give police any clue that could lead to the arrest of the alleged supplier. He obtained an investigation caution statement from the accused person and the exhibits were sealed in the presence of the accused person and an independent witness and forwarded through the Director General of the Criminal Investigation to the Police Forensic Science Laboratory for analytical examination and report. It is further the evidence of PW1 that on the 6th June, 2023, the analytical report was received from the Police Forensic Science Laboratory and based on the report, the accused person was formally arrested and charged with the offence of unlawful control of narcotic drugs.

It is the evidence of PW2 that on the 31st August 2022 at about 12:45 p.m., he was amongst a team of Police Officers including Detective Peter Paintsil and other

detectives who went to Osu in Accra upon intelligence gathered and arrested the accused person. According to PW2, the accused person was spotted sitting on a wooden bench under a tree and upon his arrest escorted him to his drinking spot named "Otanfo Nye Nyame" within the compound of his family house. A search was conducted in the presence of the accused person at the drinking spot and in the process, he spotted a white polythene bag in a standing fridge. In the presence of the accused person, he picked and opened the white polythene bag and the content was found to be a quantity of plant material suspected to be narcotic drug. He also found in the accused person's fridge a plastic bottle containing alcoholic beverage suspected to have been laced with narcotic drug. The accused person also led the police to his room and a search conducted therein in the presence of accused led to the retrieval of 4 white containers with inscription Brother Co Ltd containing plant materials suspected to be narcotic drugs and concealed in a black polythene bag and a nylon sack. They also found a white gallon containing alcoholic beverage suspected to have been laced with narcotic substance. Accused was brought to the DLEU office at the headquarters together with the exhibits retrieved from him during the search and handed over for investigations.

In this case, after the court had ruled that a *prima facie* case has been made against the accused person, he exercised his option to open his defence. Indeed, the accused person had the burden of producing evidence, sufficient enough in the light of the totality of the evidence to raise a reasonable doubt as to whether or not he had custody and control of the drugs, knew of the nature of the drugs, that the purpose of control was for either use or trafficking and also that he had the drugs without any lawful authority, although he is not required to prove his innocence.

See: **sections 10 (1), 11 (2) and 3 of the Evidence Act, NRCD 323**

See also: **Ali Yusif (No.2) v The Republic [2003-2004] SCGLR 174 holding (2)**

The accused person in his defence admitted the two (2) counts of the offence of unlawful control of narcotic drugs contrary to section 37 (1) of the Narcotics Control Commission Act, 2020 (Act 1019). The accused person told the court that he knows that he has committed an offence and prays for forgiveness. He testified that on the 31st August 2022, he was at his drinking spot which is in his house when police officers numbering about five (5) came there. According to the accused person, when he saw them, he thought that they had come to buy from his drinking spot. One of the police men named Solomon approached him personally and asked him whether he was the one known as "Tee Quaye" and he answered in the affirmative. The police officers arrested him and he asked them what offence he had committed and one police officer slapped him after which he was handcuffed. The police then dragged him from where he was seated to his drinking spot. At his drinking spot, the police continued beating him. He asked the police officers what the problem is and they told him that they have heard that he sells alcoholic beverages laced with "weed". The police officer saw a plastic bottle containing alcoholic beverage laced with "weed" in his drinking spot and he told them that he had prepared it for one police officer. It is also the evidence of the accused person that PW1 stated that he would conduct a search at his drinking spot and the search revealed a gallon containing alcoholic beverage laced with "weed". The police officer who patronizes his drinking spot asked the other police officers to stop beating him. As he was chatting with the police officers, someone called the police officers on phone and started directing them to go to the first room because that is where he (the accused person) keeps the "weed". According to the accused person, they went to the said room and brought out four (4) white buckets, a white polythene bag and fertilizer sack all containing "weed". From there they proceeded to the CID Headquarters.

It is instructive to note that the accused person further admitted the two (2) counts of the offence of unlawful control of narcotic drugs contrary to section 37 (1) of the

Narcotics Control Commission Act, 2020 (Act 1019) whilst answering questions under cross-examination:

The following dialogue ensued between the prosecutor and the accused person:

"Q. You said you are the operator of the drinking spot, is that correct?

A. Yes my lord.

Q. What is the name of your drinking spot?

A. Otanfo Nye Nyame.

Q. So you will agree with me that you were arrested at the said drinking spot?

A. Yes my lord.

Q. The drinking spot is your personal property?

A. Yes my lord.

Q. You told this court that you are pleading with the court to forgive you?

A. Yes my lord.

Q. Can you tell this court what you have done to ask for leniency from the court?

A. The reason why I initially pleaded with the court is that when the Police arrested me, they told me it is illegal for me to sell drinks which is laced with "weed".

Q. So, you want the court to believe that at the time of your arrest, you were selling alcohol laced with "weed"?

A. Yes my lord."

The accused person also admitted the offence in his caution statement (Exhibit "J") given to the police on the 31st August, 2022, that is the same day that the incident occurred when the matter was still fresh in his mind.

Excerpts from Exhibit "J" are as follows:

"I operate a drinking bar at Osu Nyaniba Estate, Accra. Today 31st, August, 2022 at about 12: 45 p.m., whilst I was seated behind my bar police came into the house and arrested me and searched me and they found one IPhone 6, a wallet containing my I.D. Card and an amount of

GH¢116.00. ***They searched the drinking bar and found a white polythene bag containing quantities of dried leaves and a plastic bottle containing liquid substance suspected to have been laced with Narcotic drugs commonly known as "under" or "laka". The Police later searched my room and found four plastic containers with inscription "BROTHER CO LTD GRAPHIATO (TEXTURE) containing some plant leaves, a ninety "90" Liters gallon containing liquid substance, fertilizer sack containing plant leave and Black polythene bag containing quantities of dried leave plant all suspected to be Narcotic*** *were retrieved and brought to CID Headquarters. One Charles has been bringing the "wee" from KETA in the Volta Region. Charles only bring the "wee" to me at a price of GH¢650.00 per one sack. After that I mix it with the alcohol sell it in the drinking bar within my house. I don't have Charles's telephone number. The name of my drinking bar is "Atanfo Nye Nyame" I completed Junior Secondary J.S.S. at the year 1993 at Tenashie Junior Secondary School, Accra and became a foot baller where along the line I had a leg injury. I then stopped playing football and got into the sale of alcohol. I sell one tot of Laka for GH¢3.00. I have sold the Laka for 6 years ago. I am on my knees begging police, please I will not do that again."*

The excerpt from Exhibit 'J' is a confession statement admissible against the accused person because it was voluntary, direct, positive and satisfactorily proved and it suffices to warrant a conviction without corroborative evidence.

From the above, the accused person confessed to the commission of the two count of the two (2) counts of the offence of unlawful control of narcotic drugs contrary to section 37 (1) of the Narcotics Control Commission Act, 2020 (Act 1019) in his evidence-in-chief, answers given under cross-examination and caution statement given to the police. And the law is that, once the said confession was voluntarily made, direct, positive and satisfactorily proved, it is sufficient to warrant conviction without corroborative evidence

See: Ayobi vs The Republic (1992 -93) PT 2GBR 769 CA

Billah Moshie vs The Republic (1972) 2 GLR 318 CA

Ofori vs The Republic (1963) 2 GLR 452 SC.

The accused person whilst cross-examining PW1 and PW2 sought to create the impression that the white and black polythene bags containing the narcotic drugs were not retrieved from his drinking spot and therefore are not his. Interestingly, whilst he was being cross-examined by the prosecutor, he shifted the goal post and stated that only the black polythene bag containing the narcotics does not belong to him. Again, in his caution statement Exhibit "J", he stated that the black polythene bag containing the narcotic drug was retrieved from him.

PW1 answered the following questions under cross-examination:

"Q. I put it to you that the white and black polythene bags containing the "weed" do not belong to me?

A. My lady, that is not correct. They were retrieved from your drinking spot."

PW2 also answered the following questions under cross-examination:

"Q. *I put it to you that the black and white polythene bags containing the plant materials are not mine?*

A. My lady, that is not correct. You claimed ownership of the black and the white polythene bags containing plant materials"

The following dialogue ensued between the prosecutor and the accused person:

"Q. Have a look at Exhibit 'A4', this Exhibit was retrieved from you, is that correct?

A. Exactly so my lord.

Q. Take a look at Exhibits 'B1' and 'C1' these were also retrieved from you, is that correct?

A. Yes my lord. Exhibit 'B1' was retrieved from me. However, Exhibit 'C1' was not retrieved from me.

Q. I am putting it to you that Exhibit 'C1' was also retrieved from you?

A. My lord, Exhibit 'C1' was not retrieved from my drinking spot."

Excerpts from Exhibit "J" are as follows:

"The Police later searched my room and found four plastic containers with inscription "BROTHER CO LTD GRAPHIATO (TEXTURE) containing some plant leaves, a ninety "90" Liters gallon containing liquid substance, fertilizer sack containing plant leave and ***Black polythene bag containing quantities of dried leave plant all suspected to be Narcotic*** *were retrieved and brought to CID Headquarters."*

From the above analysis, this court finds as a fact that the black and white polythene bags containing cannabis were retrieved from the accused person's room in his drinking spot.

Granted without admitting that the white and black polythene bags containing the cannabis were not retrieved from the accused person's room in his drinking spot, he could still be convicted for the unlawful control of the plastic containers with inscription "BROTHER CO LTD GRAPHIATO (TEXTURE) containing cannabis, the ninety Liters of gallon containing alcoholic beverage laced with cannabis, the fertilizer sack containing cannabis and the white plastic bottle containing alcoholic beverage laced with cannabis.

On the totality of the evidence on record and on a full and careful consideration of the charges, the facts, the exhibits, the applicable laws as enunciated above and the above analysis, this court finds as a fact the following:

i. That on the 31st August 2022, the accused person had in his custody and control four (4) white plastic containers containing cannabis with net weight of 5,953.56 grams, 5,353.56 grams, 5,753.56 grams and 6,653.56 grams respectively, a black polythene bag containing cannabis with net weight of 1,339.24 grams, a fertilizer sack containing cannabis with net weight of 2,339.40 grams, a white polythene bag containing cannabis with net weight of 282.58 grams, a white plastic gallon containing alcoholic beverage laced with cannabis with net weight of 1,318.22 grams and a plain plastic bottle containing alcoholic beverage laced with cannabis with a net weight of 926.16 grams.

ii. That the accused person knew of the nature of the drugs.

iii. That the purpose of the possession of the drugs was for trafficking.

iv. That the accused person had the drugs without lawful authority.

The prosecution thus succeeded in leading sufficient evidence in proving that the accused person on the 31st August 2022, had in his custody and control narcotic drugs, which he knew to be cannabis, that the purpose of the control of the cannabis was for trafficking and that the accused had the cannabis without lawful authority.

Consequently, the prosecution has succeeded in proving the two (2) counts of the offence of unlawful control of narcotic drugs contrary to section 37 (1) of the Narcotics Control Commission Act, 2010 (Act 1019) against the accused person.

On a thorough perusal of the evidence on record together and on a full and careful consideration of the charges, the facts, the exhibits, the applicable laws, and the above analysis, this Court finds the accused person guilty of all two (2) counts of the offence of unlawful control of narcotic drugs contrary to section 37 (1) of the Narcotics Control Commission Act, 2010 (Act 1019) and accordingly convicts him on each one of them.

SENTENCE

In imposing the appropriate sentence, this court considered the following aggravating factors:

i. The intrinsic seriousness of the offence charged.

ii. The gravity of the offence charged.

iii. The degree of revulsion felt by the law-abiding citizens of this country for the crime committed.

iv. The premeditation with which the criminal plan was executed.

v. The prevalence of the offence within the Accra Metropolitan Assembly and the country generally.

vi. The sudden increase in the incidence of this crime.

vii. The accused person's lack of show of remorse for his action.

This court also took into consideration in imposing the appropriate sentence, the following mitigating factors:

i. The fact that the accused person has had no brush with the law.
ii. The accused person's plea for leniency and mitigation.
iii. The four (4) days that the accused person spent in lawful custody in accordance with clause (6) of article 14 of the Constitution of Ghana, 1992.

See the following cases:

Frimpong @ Iboman v The Republic [2012] 1 SCGLR 297

Kamil v The Republic [2011] 1 SCGLR 300

Gligah & Atiso v The Republic [2010] SCGLR 870

Kwashie and Another v The Republic (1971)1 GLR 488 CA

Asaah Alias Asi vrs The Republic (1978) GLR 1

Be that as it may, there is no doubt that as a nation, apart from the canker of armed robbery and rape, narcotics is also on the increase. Undoubtedly, there is the need for a concerted effort to remove and destroy this dangerous menace from our society and the country as a whole. The abuse of narcotic drugs which has numerous health implications for the individual and causes injury to the society as a whole makes it imperative for all and sundry, especially the law enforcement agencies like the court to be at the forefront of this crusade.

This court is saddened by the current development with regards to narcotic drugs which has destroyed most of the youth and wonder what has become of our values as a country. You can imagine the numerous youthful lives that have been destroyed by the accused person, the health implications that the accused person has given to numerous persons through his sale of the narcotic drugs and the injury he has caused to families, the society and even the country as a whole. It is mind boggling as to how an individual can keep this huge net weight of cannabis in his room and at his drinking spot. The law will take its full course in this matter today so that others who harbour such traits would be deterred.

Since the offence preferred against the accused person are of a very grave nature, the sentence must not only be punitive but it must also be a deterrent or exemplary in order to mark the disapproval of society and this country of such conduct.

This Court shows its revulsion for such acts by imposing a harsh sentence to serve as a deterrent to like-minded persons and to help manage a reduction of the high number of cases in this regard.

On this note, this court hereby sentences the accused person to a fine of fifteen thousand (15,000) penalty units and thirteen (13) years imprisonment with hard labour (I.H.L) in respect of count one. In default of the payment of the fine, the accused person is sentenced to a fixed term of three (3) years imprisonment with hard labour (I.H.L.).

The accused person is further sentenced to a fine of fifteen thousand (15,000) penalty units and thirteen (13) years imprisonment with hard labour (I.H.L.) in respect of count two (2). In default of the payment of the fine, the accused person is sentenced to a fixed term of three (3) years imprisonment with hard labour (I.H.L.).

The sentences of the accused person are to run concurrently.

CONCLUSION

The prosecution succeeded in leading sufficient evidence in proving the two (2) counts of the offence of unlawful control of narcotic drugs contrary to section 37 (1) of the Narcotics Control Commission Act, 2010 (Act 1019) against the accused person. Consequently, this Court finds the accused person guilty of the two (2) counts of the offence of unlawful control of narcotic drugs contrary to section 37 (1) of the Narcotics Control Commission Act, 2010 (Act 1019) and convicts him on each one of them.

The accused person is hereby sentenced to a fine of fifteen thousand (15,000) penalty units and thirteen (13) years imprisonment with hard labour (I.H.L) in respect of count one. In default of the payment of the fine, the accused person is sentenced to a fixed term of three (3) years imprisonment with hard labour (I.H.L).

The accused person is further sentenced to a fine of fifteen thousand (15,000) penalty units and thirteen (13) years imprisonment with hard labour (I.H.L.) in respect of count two (2). In default of the payment of the fine, the accused person is sentenced to a fixed term of three (3) years imprisonment with hard labour (I.H.L.).

The sentences of the accused person are to run concurrently.

With regard to the narcotic drugs, I make the following orders:

i. The Registrar of the Circuit Court Accra, is to take photographs of the drugs together with samples of each for Appeal Purposes.

ii. The Environmental Protection Agency is order to destroy the four (4) white plastic containers containing cannabis with net weight of 5,953.56 grams, 5,353.56 grams, 5,753.56 grams and 6,653.56 grams respectively, a black polythene bag containing cannabis with net weight of 1,339.24 grams, a fertilizer sack containing cannabis with net weight of 2,339.40 grams, a white polythene bag containing cannabis with net weight of 282.58 grams, a white plastic gallon containing alcoholic beverage laced with cannabis with net weight of 1,318.22 grams and a plain plastic bottle containing alcoholic beverage laced with cannabis with a net weight of 926.16 grams in the presence of the police investigator Number 48891 Detective Corporal Solomon K. Boadi stationed at the Drug Law Enforcement Unit (DLEU) of the Criminal Investigation Department Headquarters, Accra, the Court Registrar and one Court Clerk from this court.

ACCUSED PERSON PRESENT

A.S.P LAWRENCE KOFI ANANE FOR THE REPUBLIC IS PRESENT ACCUSED PERSON IS SELF-REPRESENTED

(SGD)

H/H CHRISTINA EYIAH-DONKOR CANN (MRS.)

(CIRCUIT COURT JUDGE)